9/20/2022 - Brooklyn Union Gas/National Grid - 19-G-0309/0310

STATE OF NEW YORK

OFFICE OF RENEWABLE ENERGY SITING

CASE 19-G-0309 - Proceeding on motion of the Commission as to the rates, charges, rules, and regulations of the Brooklyn Union Gas Company, doing business as National Grid New York for gas service.

CASE 19-G-0310 - Proceeding on motion of the Commission as to the rates, charges, rules, and regulations of the Brooklyn Union Gas Company, doing business as National Grid New York for gas service.

PUBLIC STATEMENT HEARING

DATE: September 20, 2022 at 6:01 p.m.

VENUE: WebEx

BEFORE: A.L.J. JAMES A. COSTELLO

A.L.J. MAUREEN F. LEARY

ALSO PRESENT:

JOHN MAGGIORE, Commissioner

Reported by Anthony McClain

(The hearing commenced at 6:01 p.m.)

A.L.J. LEARY: Okay, well, let's get started. Good evening. My name is Maureen Leary, I'm an Administrative Law Judge with the New York State Department of Public Service, and I will be presiding over this evening's public statement hearing with Administrative Law Judge, James Costello. Thank you, Judge Costello for participating.

This public statement hearing is about National Grid's Greenpoint Liquefied Natural Gas facility proposal, which involves adding two vaporizers, namely vaporizers 13 and 14. The company filed its proposal with the Commission on August 29th, 2022.

I do want to ask our court reporter if he -- Mr. McClain, are you ready to go on the record?

THE REPORTER: Yes, Your Honor. We are on the record.

A.L.J. LEARY: We are on the record. I call case 19-G-0309,

19-G-0310. This is a proceeding on motion of the Commission as to the rates, charges, rules, and regulations of the Brooklyn Union Gas

Company doing business as National Grid for gas service.

This public statement hearing was noticed by the Secretary to the Commission on August 29th, 2022, and it invited public comment on the Greenpoint Liquefied Natural Gas vaporizer proposal, which I will refer to as the vaporizer proposal this evening.

Working with me this afternoon are representatives of the Department of Public Service, Office of Consumer Services, Sangeetha Kailas. And who else do we have? Ms. Esmin Brown-Anderson, thank you so much to all -- to both of you and the Office of Consumer Services for your assistance in making this public hearing happening. And I want everyone to know that it couldn't have happened without them.

I'd also like to thank all of the participants in this afternoon's -- or this evening's hearing. Civic engagement is really important. It takes time. And I very much appreciate, and on behalf of the whole Department, I know, we appreciate your engagement. I also -- we're privileged to have Commissioner John Maggiore with us this evening.

Commissioner Maggiore, can -- would

you be interested in addressing the participants?

COMMISSIONER MAGGIORE: Thank you, Judge Leary. Yes, I am very thankful for everybody who's decided to participate tonight as Judge Leary had indicated. As a Commissioner, I find public statement hearings to be very informative and useful to understand what people think and the communities that are affected by actions that come before us.

So I'm here to listen. You're not going to hear from me tonight, but I want to hear from you. So thank you for participating, and Judge Leary, thank you for the opportunity to say hello. Thank you.

A.L.J. LEARY: Thank you, Commissioner. Let me provide everyone with a roadmap of what we're going to do this evening. First, we're going to have an information -- information session presented by National Grid. The company will provide some important information about its vaporizer proposal that you should know about.

They'll also give you an idea of the process that will follow after this hearing is held. After the information session, we're going to have a question and answer period, at which you will have

the opportunity to inquire about the vaporizer proposal. The company has a number of representatives here online who are prepared to provide answers, explanations, et cetera.

Remember though, your question should be more related to this proposal regarding vaporizers 13 and 14 at the Greenpoint L.N.G. facility. They may also relate to the company's ability to recover the costs of the vaporizers from ratepayers. Questions should not relate to other National Grid projects, your utility bill, or any other unrelated issues.

If you are participating by WebEx and you have a question, please use the raised hand function to ask the company the question. We will be able to recognize you and unmute your line at which time you can inquire about the proposal.

And for those calling in by telephone, you can use star 3 to raise your hand. We will see that. And again, if you have a question, star 3, we'll recognize you, unmute your line and allow you to inquire of the company.

Finally, we're going to begin the public statement portion of the hearing around 7:00

p.m. At that time, registered participants may provide comments about the company's proposal. And I will, at that time, provide a little bit more detail about how we're going to proceed logistically.

I'm now going to ask the company's -- the company if they're ready to go forward with the information session. Mr. Decicco, are you and your team ready to go? Do we have to get some lines unmuted? I apologize. Ms. Kailas, I seem to have lost Mr. Decicco.

MS. KAILAS: I'm getting him.

A.L.J. LEARY: Here he is. He's back. Okay. So on your screen, for the participants, you just saw the raised hand function which should be in the lower right-hand corner of your WebEx screen. Mr. Decicco, are you --?

MR. DECICCO: Yeah, good evening, Judge. I -- I am on. Yes, thanks so much.

A.L.J. LEARY: Perfect. Go ahead.

MR. DECICCO: Yes. So -- so thank you, Judge Leary. As -- as the Judge mentioned, my name is Phil Decicco, and I represent National Grid in these matters. I want to first thank everyone for participating in this session, for the session this

afternoon, and tomorrow, and for your continued engagement on these important issues.

As I said this afternoon, look feedback, you know, really now more than ever precedes our approach to serving customers and this meeting is yet another opportunity to hear your feedback. I appreciate it was a very, I think, constructive dialogue this afternoon and I hope to do that again this evening.

National Grid serves nearly 2 million customers in Downstate New York. Customers who rely on us every day to heat their homes and cook their food and power their businesses. And today we'll be discussing a project at our Greenpoint, Brooklyn facility that is key to our plans for meeting customer's energy needs in the near term.

So -- so why are we here? In 2019, we made commitments to the State of New York and to our customers. We said that we would find solutions that allowed us to connect new customers in the near term, and that we would solicit stakeholder feedback in developing longer term solutions to meet our customers' energy needs.

And we did just that through a public

process that presented a range of options. We considered factors like reliability and affordability, environmental, and community impacts across solutions that ranged from pipelines to -- to barges, to distributed infrastructure solutions and -- and solutions that relied heavily on non-infrastructure like energy efficiency and demand response.

And we heard feedback that very strongly supported programs that -- that were non-infrastructure, programs that reduce demand instead of increasing supply. So with the benefit of that feedback, we developed an approach that in the first place relies heavily on energy efficiency, weatherization, demand response, and electrification to reduce our customers' energy consumption.

We coupled that with a small portfolio of what are targeted non-pipes solutions to help support near term safety and reliability of the gas network. One component of that plan is the Greenpoint vaporizer project. As you will hear, this project allows us to use our existing Greenpoint storage assets more efficiently.

It involves importantly no new gas

supply, will only operate on a handful of days when needed to serve customers, provides unique and critical reliability benefits, and is more efficient and consumes less energy than existing units which allows us to actually lower the direct emissions from the facility.

In addition to the review by the Public Service Commission the project requires an air permit from the New York State Department of Environmental Conservation, which will be addressed separately after this process. So moving to the next slide, I want to first talk about why it is that we need this project.

Our forecasts of customer demand really drives all of our planning. We use the forecast and develop models that will tell us whether our system is capable of meeting energy needs on the coldest days of the winter that our customers need heat the most.

And it's critical because the health and safety consequences of not having a heating system, not having an active gas line on the coldest days are significant and we've seen that in recent history.

Forecast considers our customer's energy use, economic factors like housing and construction data to anticipate the future needs. The current forecast, which is really just a snapshot, it tells us, you know, what our -- our system needs look like at the moment, projects increasing demand in the near term, which begins to flatten as energy efficiency and energy policy reduce demand in the future.

So why is this all important? Again, we need to build a system that's capable of meeting our forecast energy needs. Our customers need to know that when they turn on their thermostats, their heating works on those coldest days. But I want to be clear. This forecast is absolutely not our goal. We are trying very hard to bend this curve down, so our customers are using less energy over time.

Because using less gas aligns with our vision of a sustainable energy future and we want to focus on delivering the demand side solutions that our customers and stakeholders want to see us doing. And that's why we have made changes. Changes to our rate mechanisms that eliminate financial incentives around customer growth.

And instead, we have incentives now for lowering gas use and outperforming our energy efficiency targets. We've changed our marketing practices. We are no longer marketing gas. And we've eliminated all customer incentives for gas conversions.

Instead, we are promoting alternatives. If you apply for gas service today, we will tell you about other options, including electrification and highlight incentives that could lower the costs of alternative fuels like -- like electricity, and we've seen good progress. If we can move to the next slide.

We are investing more than $140 million in demand response reduction programs, under the terms of our rate plans. And this year we secured Commission approval to do even more. Our approach increasing -- increasingly relies on weatherization programs which provide benefits to customers no matter what heating options they ultimately choose.

So the customer electrifies, you know, having invested in weatherization will pay tremendous dividends. We're targeting programs at our low- and

moderate-income customers to help them manage their energy burdens. As we said this afternoon, really no program will help customers lower emissions and lower their fuel costs more than energy efficiency in the near term.

And our commitment in this area is more than just proposals. It's more than just aspirations. We've set ambitious targets. And there are significant financial consequences if we don't meet those targets.

Now so far we have. We've exceeded our targets for energy efficiency and demand response. In the energy efficiency area, we achieved over 2-and-a-half times as much annual energy savings last year as we did just five years ago.

Our demand response programs eliminate the equivalent gas usage from about 150,000 homes on a peak day and those programs are growing exponentially. We're also referring more customers to -- prospective gas customers to electrification and exploring options to deploy more non-pipes alternatives.

These are challenging targets. It's very possible, you know, so -- so challenging, that

it's very possible we might not hit these targets in the future, but I assure you it's not for lack of trying. But we cannot rely on non-infrastructure programs alone. We can go to the next slide.

As we've said many times, we appreciate the need to calibrate our approach to capital projects into product -- and prioritize non-pipes alternatives. And we've recognized the need for enhanced transparency. So we have committed to undergo further assessment by qualified independent consultants selected by the Department of Public Service.

This consultant will look at our -- our proposed project like the Greenpoint vaporizer and validate the need and -- and the assumptions that are underlying that need. When we say that we need, the independent consultant, as the Judge men -- mentioned will consider several factors including safety and reliability benefits, greenhouse gas emissions, customer costs, and importantly public comment and feedback among other factors.

It's important to emphasize that we included these provisions in our rate plans because it's important that we validate the need for our --

our infrastructure investments. And that we stand behind our commitments to deliver alternative solutions. And importantly, we support greater stakeholder engagement.

So with that, I'm going to turn over to my colleague, Chris Connolly. He's going to tell you more about the project itself.

MR. CONNOLLY: Thank you, Phil. Good evening, folks. If we could go to the next slide, please?

My name is Chris Connolly. I represent National Grid as well. I have responsibility for National Grid's L.N.G. assets in the U.S. Let me start by covering off a few of the basics.

What is Liquefied Natural Gas? Commonly referred to as L.N.G.. It is a cryogenic, colorless, odorless liquid stored at atmospheric pressure in well-insulated tanks at minus 260 degrees Fahrenheit. L.N.G. occupies approximately 1/600th of the volume in the liquid state as it would in the gas state.

A process called liquefaction cools and condenses the gas to liquid utilizing onsite

equipment for efficient storage in the tanks. It does take approximately 220 days to fill the tanks from empty. This is done during the warmer summer months and shoulder months.

During a very cold weather approaching typically 15 degrees Fahrenheit, liquid is withdrawn from storage. It is reheated to approximately 40 degrees Fahrenheit which -- which then turns the liquid into a gas and it's re-injected into the gas distribution system to meet our customer needs.

A storage provides approximately 5 days of vaporization if we were to run continuously at full capacity, meaning all vaporizers in operation. So a little bit more detail on the Greenpoint L.N.G. facility itself. So the site in Greenpoint encompasses approximately 50 acres of a total 100 acre site referred to as National Grid's Greenpoint Energy Center.

The tanks were constructed in 1968 and 1971 respectively, tanks 1 and tank 2. And we have a -- total storage capacity of 1.6 billion cubic feet. We have 6 vaporizers existing at the plants, 3 of which are connected to the high-pressure distribution system with 1 vaporizer serving as a backup.

We also have an additional 3 connected to the low-pressure distribution system, but here we have no redundancy. Vaporizers 13 and 14 would connect to the low-pressure distribution system only. A future state of 5 vaporizers connected to the low-pressure distribution system with one serving as a backup. Again, we don't have that backup today. If we could go to the next slide.

The Northeast has the highest concentration of L.N.G. peak saving -- shaving facilities in the U.S. L.N.G. is a critical component of National Grid's ability to meet peak heating season requirements and manage system operations. Without on-system L.N.G. inventory, the company would be unable to meet peak heating season requirements.

So how does L.N.G. support our customer energy needs? For one, it's a supply resource. We sit at the end of the pipelines that deliver gas to our system. The L.N.G. supplied -- the L.N.G. supply connected to our distribution system represents approximately 11 percent of our peak supply needed for our customers on design day. The design day is the coldest day we anticipate based

on our forecasting.

The L.N.G. facility is used as a balancing resource. The L.N.G. plant stands ready during winter heating season to ensure reliability of system operations. The L.N.G. facility is also an asset that ensures that reliability we have full control over the utilization of the vaporizers, only operating when needed, based on forecasted cold temperatures or when there are interruptions in the upstream pipeline supply coming into our region.

The distribution system support during periods of peak demands, and this is typically in the early morning hours as our customers are beginning their day. They're turning up their thermostats to warm their homes and apartments. They're preparing for their -- for their days by cooking breakfast, taking showers.

And in addition, schools are preparing for student arrivals and local businesses are preparing for their day as well. Go to the next slide.

The vaporizer 13 and project -- 13 and 14 project was included as a distributed infrastructure solution in the long-term capacity

supplemental report. The project utilizes the existing L.N.G. facility capabilities, while adding 2 new vaporizers to enable more efficient use of the onsite L.N.G. supply to reheat the liquid and send out into the existing low pressure natural gas distribution network.

The project would increase the output of the facility by 60 dekatherms per day to a total of approximately 350 dekatherms per day. The project is wholly contained within the Greenpoint L.N.G. facility. And the project has an 18-month construction schedule.

Now, turning to the schematic that we're showing here, this provides an overview of plant operations. Very simply, we take the gas in from the high-pressure distribution system, we cool it or referred to as liquefy it to a liquid state and store it during the warmer months. The tanks are designed in there as a very large thermos to keep the liquid chilled to a minus 260 degrees Fahrenheit.

During the winter season and on the coldest days of the year, the liquid is pumped from the tanks. It is reheated. This is the vaporization process and sent out into the distribution system.

National Grid has been operating L.N.G. assets safely and reliably for over 50 years.

These assets are important to ensure we meet our obligation, to ensure reliable energy delivery to our customers when they need it. Now, it's important here that we make a distinction between this vaporizer project at the Greenpoint L.N.G. facility and the M.R.I. project that is in-service as there were many questions asked in the earlier information session and comments made about the M.R.I. project.

The vaporizer 13 and 14 project and the M.R.I. project are functionally independent, and they have different purposes. The function of the M.R.I. project is to improve the reliability and the flexibility of the existing local distribution system. The M.R.I. project does not impact system supply.

Further, the projects are disconnected in time, place, and purpose. The M.R.I. project was planned long before the vaporizer project and was considered -- was considered and was intended to improve the reliability and the flexibility of the existing local distribution system by creating an

additional path for the gas to move through the existing local distribution system.

There is no additional gas supply associated with M.R.I. The vaporizer 13 and 14 project on the other hand, is needed to more efficiently heat the onsite stored liquid back to a gas and send out on the coldest days of the winter when interstate pipelines are unable to meet the demand.

If we could go to the next slide? B. In terms of operation, an average 8 days over the prior 10 years with the highest number of days at 19 in the winter 23 -- 2013 and 2014, which was the year of the polar vortex. So in summary here, right? The project is designed to meet periods of peak demand, right? That's the focus. Vaporizers do not add any supply or change the storage capacity of our tanks.

And it does not cause the plant to operate more frequently. The plant will only operate as needed. And so what we've highlighted previously is that over the last 5 years, we've operated vaporizers as needed anywhere from 2 to 14 days. Now the numbers that I just gave you is that we have over a 10-year period that we've seen an average of 8 days

where we've had vaporizers be utilized.

And I mentioned the polar vortex in -- in the winter of 2013 and 2014, where we had a need to operate vaporizers a total of 19 days during that very cold winter that we had that year. In terms of reliability, I already mentioned the benefits to ensure reliable operations and it is our duty to ensure customers are afforded reliable service.

The project cost is approximately 65 million. We are utilizing our existing L.N.G. asset because of the cost compared very favorably to other projects and options considered and is able to be delivered without disruption to the community. In terms of environmental and emissions, because of the intermittent and infrequent operations, we will see reduced greenhouse gas emissions from the L.N.G. facility with these new, more efficient units in place.

This will also allow us to downgrade our existing permit which caps nitrogen oxides to less than 25 tons per year which is roughly half the existing permit.

And the last important piece here is the community. From an -- community impact

standpoint, all work for the project is done within the footprint of the L.N.G. facility. And as such, there is no disruption to the residents and the business owners in the area.

There'll be no noise impacts. There'll be no traffic impacts. There'll be no street restrictions or closures. All the work will happen inside the Greenpoint L.N.G. facility. So therefore, we have no pact -- no impacts to businesses conducted in normal business activities in the neighborhood as well.

And now, I'm going to turn back to Phil to finish out the presentation.

MR. DECICCO: Yeah, Chris, thanks so much. And -- and for anyone who's interested in really getting more information on the project, I really encourage you to read our report and look at our website. There are -- there's more information there than we could possibly attempt to -- to address here at this presentation.

But -- but we're certainly encouraging folks to take a look at that information and learn more. So in summary, you know, we're delivering on the commitment -- commitments we made to New York

State and to our customers to find solutions that incorporated their feedback, which is why we are pursuing an approach that involves both infrastructure and non-infrastructure components.

We agreed to submit our solutions to further independent review because we believe these projects are critical to serving customers. And to demonstrate that commitment, we are conditioning cost recovery on the results of independent assessment as well as our ability to deliver the energy efficiency demand response, electrification targets that -- that we heard, you know, our customers want to see us doing.

As the Commission noted in approving the rate settlement, this goes well beyond what is typically considered as part of a rate case. And this is a process that we feel is important just to demonstrate our -- our transparency in this area.

In terms of the next step -- steps, parties and members of the public will have the opportunity to submit written comments to the Commission's website which will encourage you -- we encourage you to do that as soon as possible, so that can be considered by the independent consultant.

After the -- the report is filed with the independent consultant, and upon consideration of public comments, the Commission will issue a final decision -- decision regarding a request for cost recovery through this project. I want to thank you for your attention. And Judge, I'll turn it back to you now for questions.

A.L.J. LEARY: Thank you. Let's move to the question and answer session. Remember, please use the raised hand function if you're participating on the WebEx platform in front of your computer. And for those of you calling in by telephone, you can press star 3, and that will do the same thing which will raise your hand, so that we can recognize you and unmute your line, so that you can present your question to the company.

So does anyone have questions?

MS. KAILAS: We have a raised hand, Your Honor.

A.L.J. LEARY: Okay. Let's start with Margot Spindelman. Ms. Spindelman, your line is unmuted, please proceed.

MS. SPINDELMAN: Okay. Thank you.

A.L.J. LEARY: Remember -- remember to

state and spell your last name for our court reporter.

MS. SPINDELMAN: Okay. Thanks. My name is Margot Spindelman, S-P-I-N-D-E-L-M-A-N. So in February 2020, National Grid testified that it never conducted a full lifecycle greenhouse gas emission assessment to determine if vaporizers 13 and 14 complied with the C.L.C.P.A. Was a full lifecycle G.H.G. assessment ever done?

MR. DECICCO: Yes, it was. That's a really good question and I appreciate you -- you asking it. All right. In connection with our D.E.C. permit application, we've had to perform a full C.L.C.P.A. greenhouse gas emission assessment. That report is available in its entirety on our website, Greenpointenergycenter.com.

It's referenced in the report. And that -- that can give you, I think, a full view of -- of the type of information you're looking for with respect to -- to greenhouse gas emissions of the impacts from this particular facility.

MS. SPINDELMAN: Okay. Good. Thank you.

A.L.J. LEARY: Okay. Olivia Beals.

Ms. Beals, your line will be unmuted in one minute. I'm not -- even one minute, but let me just keep an eye on that. You are unmuted. Please proceed and remember to state your name and spell your last name for our court reporter.

MS. BEALS: Hi, my name is Olivia Beals, last name is spelled B-E-A-L-S. My question is why does National Grid believe that the L.N.G. vaporizers are what is needed to meet peak demand rather than investing in projects, like for example, the biogas digesters at the Newtown Creek Wastewater Treatment Plant?

MR. DECICCO: Yeah. And that's -- that's a really good question. You know, I think what we have set out in our distributed infrastructure approach as we -- as we call it, our long-term report is really a combination of projects. So it's -- it's a bit of an all-of-the-above solution.

We are absolutely pursuing projects like the -- like the Newtown Creek gas digesters and look forward to bringing on that supply in the near term in order to help meet our customers with -- with renewable natural gas in a way we think is just a

great opportunity and -- and really the kind of opp -- the kind of projects we're going to be pursuing as we go forward.

At the same time though, we also need to understand that there's -- there's other, you know, supply demands on our system that cannot be met by that exclusively. So that's why we are proposing in addition to really enhanced energy efficiency weatherization demand response projects like Greenpoint.

But absolutely, you know, projects like the Newtown Creek egg digester is -- is critical to -- to meeting our energy needs going forward.

MS. BEALS: Thank you.

MS. KAILAS: Judge Leary, should I unmute Ms. Laurel?

A.L.J. LEARY: Yes, you've already unmuted her. I'm sorry. I was speaking and I was on mute, so I apologize. Ms. Leckert, your line is unmuted, please proceed, and spell your name for the court reporter.

MS. LECKERT: Laurel Leckert, L-E-C-K-E-R-T. My neighbors and I have expressed concerns that National Grid insisted that vaporizers 13 and 14

are unrelated to the company's L.N.G. trucking station and the North Brooklyn pipeline. However, these claims directly contradict National Grid's own written statements.

In its May 2020 supplemental long-term report, National Grid stated that, "L.N.G. truck station permits and an L.N.G. trucking Memorandum of Understanding with the City of New York are required to enable a refill process for vaporizers 13 and 14."

Why has National Grid never explained the direct contradiction between its recent claims and multiple written statements that indicate precisely the opposite that all 3 of these projects are interconnected?

MR. DECICCO: Yeah, you know, if -- if statements like that cause confusion, I think it's just because they are inartful because they're actually inconsistent. As we described in the afternoon session, excuse me, Chris began to describe today. All of that work is -- is functionally independent. We need the vaporizers independent of anything to do with L.N.G. trucking, certainly independent of M.R.I.

We are looking to get these vaporizers

and -- and -- and extract the benefit of that project completely to address a particular situation about meeting peak gas on a design day, on a design hour. And that project is uniquely positioned to do that for the reasons that Chris described.

You know, L.N.G. trucking solves a different problem which is, if you find yourself emptying the tanks or if you find some issue with your ability to fill the tanks in the first place, you know, you wouldn't have the supply to do that. You need another solution. Chris describe how M.R.I.'s, you know, providing different benefits on our distribution system.

So I -- I realized in the context of things like the long-term report, we're talking about everything we're doing in the customer's needs, these projects can get confused -- these -- these projects can get confused. Sometimes we describe them inartfully. But I think for the reasons that we've described, you know, these are -- these are very different projects.

A.L.J. LEARY: Thank you. Next questioner is Gigi Nieson. Ms. Nieson, you are unmuted. Please proceed.

MS. NIESON: Yeah, hi there. My name is Gigi Nieson, N-I-E-S-O-N. And my question is, in the last 3 years, National Grid has only used 10 percent, 1 percent, and 12 percent of the fracked gas stored in its Greenpoint tanks and the C.L.C.P.A. requires a reduction in gas use.

So why are these, you know, vaporizers needed? National Grid's claim that it must be able -- able to vaporize L.N.G. at a faster rate to meet demand hasn't been substantiated?

MR. DECICCO: Yes. So -- so that's -- that's a really good question. And I think, you know, it all depends on how cold the winter we have and whether we have our other supply resources show up. So as -- as Chris described in the polar vortex winter, the plant was operating far more because of just the demands on the system and the need to do that.

And as -- as we've heard, you know, one of the challenging aspects of climate change is that we could see more severe weather, both hotter weather and more severe cold. Another reason we need to be prepared and have this asset available on the coldest days of the winter, you know, when we see

them.

But the other consideration here is that unlike the electric system that is designed with multiple redundancies, our -- our gas system is just not set up that way. So if we have a failure on a pipeline system, we have no backups other than projects like the L.N.G. vaporizers that would allow us with a non-system asset to deliver gas that we're not getting from other sources that we're counting on.

So it's not just about meeting cold days. That -- that's critically important. And that's why we -- we're, you know, in the first place pursuing this project, but it's at the same time also, the reliability and redundancy we get where, you know, there is just no contingency built into the gas network.

It's projects like this that allow us to be comfortable that if we were to lose another supply -- supply source, we would have this on system in our control that we could dispatch to meet our customer needs. So it's a good question.

And -- and certainly, again, if we don't need to -- if we don't need to operate it, we

will not. I think history tells us, you know, between 2 and 14 days in the last 5 years we have, and -- and fair to say that that's likely to occur going forward as well.

A.L.J. LEARY: Thank you. Ms. Nieson, please lower your raised hand. Our next questioner is Kim Fraczek. I hope I'm saying that correctly. I always get this wrong. I apologize. So your line has been muted. Go ahead.

MS. FRACZEK: I had to grow up with this last name. It's Kim Fraczek, like the chalk.

A.L.J. LEARY: Fraczek. Thank you.

MS. FRACZEK: F like Frank R-A-C like Charlie -Z like zebra, -E-K. We're concerned that the independent consultant, each has P.A. Consulting just gave National Grid an award in 2021. How are we supposed to feel secure that P.A. Consulting is actually independent and what other consulting firms did you look at for the independent assessment?

MR. DECICCO: Yeah, I -- I think it's important to understand that we didn't select any firms for the independent assessment, right? The Department of Public Service did. The firm is not working for us because that wouldn't be appropriate

nor should they. They're working for the Department of Public Service.

And so we didn't -- we didn't consider any others because it wasn't our decision to make.

MS. FRACZEK: What other firms do -- did the Department of Public Service look at?

MR. DECICCO: Yeah, that's not a question that we can answer because that wasn't --

MS. FRACZEK: I see.

MR. DECICCO: -- we weren't involved in that as we shouldn't have been.

MS. FRACZEK: Okay. Well, I see that some of the Commissioners and staff are on this call, maybe they could answer some of those questions.

A.L.J. LEARY: So Ms. Fraczek, I am going to ask you to defer your question and I will connect you with our technical staff who can respond to that. And I do not -- they were on this afternoon's call, but they are not on this evening's call.

MS. FRACZEK: Got it.

A.L.J. LEARY: So if you could defer that, we -- I would much appreciate it.

MS. FRACZEK: Okay.

A.L.J. LEARY: I do not know the answer myself, and I'm not supposed to answer questions anyway. So is that -- are you finished with your inquiry? Are you set?

MS. FRACZEK: If I could -- well, I don't want to take time away from other folks in my neighborhood that have questions, but if I do have time for one more question, I would appreciate that.

A.L.J. LEARY: Go ahead. Go ahead.

MS. FRACZEK: As you guys know, Phil, you know, I was at the afternoon session. And you know, I just -- one of the questions that -- that didn't really get answered by a few folks is why National Grid is claiming that the M.R.I./North Brooklyn Pipeline, as we call it, in the neighborhood are not related to the L.N.G. vaporizers?

Because we already know that phases 1 through 4 are connected to a smaller five -- pipeline because you couldn't build phase 5 because of -- because our community has already protested that. And that's why we're even at this hearing right now.

So why do you not think we know that you're segmenting these projects to convince our Public Service Commissioners that they're

independent?

MR. DECICCO: Yeah, I mean, I think we've attempted to answer this question a few times now. I -- I appreciate that there's technical elements of this that are probably not easily conveyed, but I -- I think, Kim, we've been trying to answer this question a few times and explain why they're -- they're wholly different projects. Why they're not physically connected. Why they're serving different needs.

You know, we're happy to take another run in another context, but I think we've tried to answer this question the best we can.

MS. FRACZEK: I feel like earlier you said that the L.N.G. vaporizers are not connected to M.R.I. as it stands right now because phase 5 hasn't been built, because our community is protesting it. So I just, you know, we -- we know that phase 5 -- that -- without phase 5, you know, you -- like the L.N.G. vaporizers, you know, probably aren't going to move forward.

However, because you're already building the vaporizers and the trucking station, you know, we assume that you're banking on the fact that

they'll be approved. Is that correct?

MR. DECICCO: No, and far from it. So it would be completely pointless for us, you know, to be pursuing this project, if it required another project that -- that we aren't moving forward with, right? The whole reason we're doing this is because we were -- we're -- we're explaining that it's critically necessary to meet customer's peak demand.

If in fact, it was only useful with another project, and that would be completely, you know, useless and pointless and -- and not actually address the issue. So again, I -- I -- I apologize if -- if we're unable to articulate this perfectly, you know, in the context of this particular proceeding.

I think we've made a really good faith effort to try to explain the technical distinctions between the projects and why they are not related. But we're happy to take another run at it.

MS. FRACZEK: Alrighty.

A.L.J. LEARY: And -- and I think it's important to know that this is the company's entire system. It's an entire system, Ms. Fraczek. And -- and so if you look at it that way, sure, I think, you

know, all of it is somehow related because it's National Grids and yet, I -- I think it may be helpful for you to talk offline with representatives from the Department to have that question answered as well.

Because I'll have to be honest with you, in this afternoon's session, I had some confusion myself. So I understand the difficulty in explaining -- the company explaining the -- the technical separation here. I am not the person to do that, however.

So I'm going to -- I am going to contact our -- our folks who -- who will be able to respond to your question and connect you with them. Okay?

MS. FRACZEK: Thank you so much. Our -- our community is definitely not confused about it, but I would love to talk to somebody that you could connect me to. Thank you, Maureen.

A.L.J. LEARY: Of course. Okay. Let's go to Monica Hunken. Ms. Hunken, your line is unmuted. Please proceed.

MS. HUNKEN: Good evening. My name is Monica Hunken. That's H-U-N-K-E-N. And I just

wanted to ask, in February 2020, National Grid testified that it never conducted an assessment to determine if vaporizers 13 and 14 disproportionately burdened disadvantaged communities as is required by the C.L.C.P.A. Was this assessment ever done? And if so, what was the result of that?

MR. DECICCO: Yeah. So -- so actually, this issue was presented in the context of our rate case, the Commission waited on that in particular and said for -- for a lot of reasons. First of all, because for the reasons that we described, this project actually lowers direct emissions coming from the facility because of the more efficient operation of the units.

The Commission also considered and -- and articulated in its order, the fact that this project is coupled with energy efficiency, weatherization demand response, including programs that are targeted at -- at low- and moderate-income customers and giving them opportunities to -- to realize energy efficiency savings and cost savings from those programs.

So the totality of those factors caused the Commission to determine that, in fact,

there was no disparate impact on -- on environmental justice communities. And in fact, we were, you know, through these programs, helping our customers save energy at the end of the day, given the significant investment in -- in non-infrastructure programs.

So that -- that all predates, you know, the -- the testimony that you described, excuse me, postdates the testimony you described. That will -- that will happen in the end.

MS. HUNKEN: Can you explain more how it's creating energy efficiency -- or energy saving? What was it that you were saying for low income working people?

MR. DECICCO: So -- so this -- the distributing to the -- this is a -- a sort of, you know, a portfolio approach, right? So -- so in addition to projects like Greenpoint, we have also, in order to meet customer demand, rolled out, as I described, a $140 million worth of energy efficiency programs over the term of rate plan.

We just got approval to do more from the Commission this past spring, including programs that are targeted at low- and moderate-income customers, energy audits and weatherization, energy

efficiency equipment upgrades.

And so you know, looking at our approach collectively, the Commission determined that in fact, this -- there was no disparate impact on -- on the adjoining communities.

A.L.J. LEARY: Okay. I am seeing folks who have already had the opportunity to present questions. Oh, here's someone. So if you've already had an opportunity to ask a question, please lower your hand. You're by, you know, putting -- pressing that hand icon on WebEx.

Next questioner is Ken Schles. Mr. Schles, your line is unmuted. Please proceed.

MR. SCHLES: Hello. Can you hear me?

A.L.J. LEARY: Yes, we can. Okay.

MR. SCHLES: Okay. I just want to follow-up from the last question. Because my understanding is that the old vaporizers are not going to be decommissioned. So I don't understand how there could be a lower -- a lowering of greenhouse gas emissions if we're just adding to the portfolio of fracked gas combustion.

MR. DECICCO: Yeah. So I'll turn this over to -- to Chris and -- and I'll turn over to

Chris, but -- but I think the short answer is, you know, as we have the need to operate the vaporizers, we will, in the first place use, obviously our newer, more efficient units.

And -- and it's only on the rarest occasions that all vaporizers operate at the same time. And Chris, why don't you -- why don't you take that question.

MR. CONNOLLY: Yeah, Phil, thank you. And thank you for the question. You're absolutely right that we will be cycling the vaporizers and running the newer vaporizers that are more efficient than the existing vaporizers at the site.

In addition, important highlight and again, I mentioned this earlier in the information session is that one of the vaporizers will act as redundant. So again, that provides us additional reliability and resiliency of our plant to ensure that we can meet our -- our peak customer needs during those coldest days of the year.

A.L.J. LEARY: So Mr. -- Mr. Connolly, just by way of clarification, are all of the vaporizers located at the Greenpoint L.N.G. facility operational?

MR. CONNOLLY: Yes, they are. Yes, the existing six vaporizers that we have at the L.N.G. facility are all operational.

A.L.J. LEARY: Okay. I -- I thought there were eight.

MR. CONNOLLY: No, the plan with vaporizer 13 and 14, we would have a total of 8 which out of the total 8, 2 of which will be used for backup purposes or redundancy.

A.L.J. LEARY: Thank you for that explanation. Mr. Schles, are you satisfied at -- do you have any additional inquiry? I heard you. I may have cut you off. I apologize.

MR. SCHLES: Yeah. I guess, the question -- I guess, needs to be fleshed out a little bit more, because my understanding is the vaporizers will be in operation throughout the course of the year to fill up the L.N.G. tanks and not really used mostly not being used on a short-term process, or is that -- is that -- is that incorrect? So --?

MR. DECICCO: No, yeah -- sorry, I don't mean to talk over you.

MR. SCHLES: No, that's okay.

MR. DECICCO: Okay. So let me help

you -- let -- let's help clarify that, so. And you have it in the reverse order. So the vaporizers are actually used during the winter heating season dependent on temperature, coldest days of the year to take the liquid out of the tanks to heat it to a gas state and send it out into the system.

So they're used very -- infrequently and intermittently, only largely driven by the weather forecast, the temperature that we have during the winter months.

MR. SCHLES: Okay. Thanks for clarifying that. I -- I had -- I had that wrong, but -- but still it seems weird to me that you'll be using these older ones when it seems like we haven't met the need for even the ones that we have online, but okay. That's -- that's my question for now.

A.L.J. LEARY: Okay. Our next questioner is Ann Pearson. Ms. Pearson, your line is unmuted. Please proceed.

MS. PEARSON: So my name is Anya Pearson. I'm curious if this, like new development is being paired with plans for alternative means of providing heating, or if the plan is to just continually build more vaporizers, more of these, you

know, relatively dangerous vaporizers in our city as demand increases, you know?

MR. DECICCO: Yeah, that's a -- that's a good question. And so the short answer is, we are absolutely and increasingly relying on not -- those non-infrastructure solutions, as we call them, we call them demand-side solutions, be it energy efficiency demand response, electrification.

As I've described before, you know, customers that are, I should say, applicants that -- that are seeking to connect to the gas system will hear about other options. This is the gas company encouraging our customers to become electric customers if they're good candidates for that.

We are also again, investing in unprecedented levels of energy efficiency and -- and showing some really good results. Things like demand response that, you know, really weren't even programs a few years ago. We have -- we have started to ramp up and are really growing in order to meet this issue.

Again, the -- the best solution we have is having our customers use less energy instead of adding more supply, excuse me. So that's

absolutely we're prioritizing. That said, we still need some projects like the Greenpoint vaporizer project in order to get us through the next couple of years.

But our expectation is going forward and after these projects, you know, really be those demand-side measures that allow us to -- to continue to meet customer energy needs into the future.

MS. PEARSON: Okay. Have -- have you been able to, like project that actual increased demand over time?

MR. DECICCO: Yeah. So we have and there was a slide in the pack that had our forecast. And I should say, you know, our forecasts has -- has assumptions around energy efficiency, has assumptions around energy policy. It has assumptions around issues like the Building Electrification Law changes in -- in -- in the City of New York.

So all of those things are factoring in our decisions. We are, as I described before, you know, what we -- what we are currently forecasting is not our goal. Our goal is to make that demand curve bend down, we want to -- we want to reduce demand, so we don't have to find ourselves trying to, you know,

develop these projects, having these conversations. We'd much rather have conversations around helping our customers find energy efficiency solutions to their energy needs, rather than -- than these types of supply projects.

A.L.J. LEARY: Mr. Decicco, would you just briefly explain for some of the participants what the demand response -- what demand response means and how it works.

MR. DECICCO: Sure. And -- and this is something, you know, in some ways we've been doing for years, but we're now doing in a much more targeted way. So with demand response, we look for customers who are willing to participate and voluntarily curtail their gas usage when we need it most.

Typically, it's industrial customers or -- or large buildings that have the ability to either turn off their heating needs or turn off their consumption or switch to alternate fuels.

And what that allows us to do is instead of having to produce that supply on those coldest days, we just have our customers shed that load and -- and we don't -- we can serve our other

customers, human- needs customers in particular that are relying on us to keep their homes warm and don't have other options.

So it's really, you know, we've -- we've done programs like that. We've had interruptible customers for decades. It's been something we've -- we've prioritized. But really, we're now looking to do it more surgically or more strategically, and find those -- those largest customers that at the peak hour are willing to -- to get off the gas system and allow us to serve everyone else and -- and save that supply need.

A.L.J. LEARY: Thank you. I think that that ends the question and answer session. I don't see any additional questioners. Although I could be wrong. Ms. Kailas, is there anyone else that would like to present a question to the company? Okay. I see Barbara Hertel. Ms. Hertel, your line is unmuted. Please proceed.

MS. HERTEL: Thank you. I was wondering since you're building storage tanks also is -- are you planning on sending this L.N.G. gas to like Europe or, you know, outside of the New York City area to help, you know, to, you know -- you

know, give, you know, get gas to other areas?

MR. DECICCO: Well, the short answer is absolutely not. And -- and -- and also just, you know, one -- one part of that question that just needs clarification is we're not adding any storage assets whatsoever. So this solution does not deliver one extra molecule of gas.

Again, it allows us to use the existing gas more efficiently. And -- and we need this on our system. So there's absolutely no plans or ability or -- or, you know, it's -- it's the farthest thing from our mind, you know, sending this gas anywhere else other than being, you know, used to serve our customers.

MS. HERTEL: Thank you.

A.L.J. LEARY: Thank you. And I think that that does it. I'm going to move right away into the public statement portion of the hearing. And I introduced everyone earlier to Commissioner Maggiore, we are fortunate to have the Chair of the Commission.

Chair Rory Christian, attending this evening's hearing, and I'd like to introduce you to Chair Christian. And Chair Christian, I give you the floor.

CHAIR CHRISTIAN: Thank you, Judge Leary. And good evening, everyone. Was joined a few minutes late. So apologize for missing the early part of the discussion, but it's clear from what I've been able to catch that this project is of great interest.

And I'm looking forward to hearing public comments, and hearing what you have to say about this project and its viability for the future. So I want to thank you all for taking the time out of your days to be here this evening, and I'm looking forward to a healthy discussion. Thank you all. Judge Leary.

A.L.J. LEARY: Thank you, Chair Christian. I want to re -- reiterate a couple of things and then go through some logistics. So this hearing is about a proposal that the company has made that's currently pending before the Commission. The Commission will ultimately decide thumbs up or thumbs down.

And the company's proposal, as you've heard, requests the approval to recover the costs of vaporizers 13 and 14 at the Greenpoint Liquefied Natural Gas facility. But it's also important for

you to know that in 2021, the company agreed and the Commission ordered that this proposal be subject to review by a qualified independent consultant.

Now, you've heard this, but to me, this is critically important for the public to know. In its review, the independent consultant is required to apply specific criteria including your input, public input, like the comments you're providing tonight.

In addition, the independent consul -- consultant is required to consider many other factors such as the cost of the proposal, the reasonableness of the forecasted demand for this type of energy, the potential greenhouse gas emissions, safety and reliability benefits, other viable alternatives that could meet or eliminate the demand.

And just to give you a sort of better picture of what's going to happen going forward. Following the independent consultant’s review of the proposal, there will be a written report provided to the Commission that contains an analysis and details and recommendations. And that report will be publicly available to you on the Department's website, www.dps.gov.

That's going to happen in about 45 days from the date the proposal was filed. It was, I believe, August 29th. And that puts us on or about October 15th. So look for it then on the website, and you'll be able to read it by looking for the search function button and putting in the case number, 19-G-0309 or 19-G-0310.

So what happens in this report? Well, the independent consultant may recommend to the Commission that the vaporizers 13 and 14 be constructed after considering that criteria. But the independent consultant may also determine they're not necessary. In either case, the Commissioners will issue an order that either authorizes or denies the company imposing additional cost recovery on its customers.

So even if the independent consultant recommends the proposal, the Commission has the ability to accept it, modify it, or reject it. And there's another part of this process it's important to highlight, and that involves a separate State agency's review and approval. And that's the Department of Environmental Conservation.

So D.E.C. is currently considering

whether these 2 new vaporizers should be granted an air pollution control permit, or the existing permit revised, I should say. And that's an entirely separate public process from this one that's before the Commission.

But it also involves public input, as many of you know, and you can check D.E.C.'s website or learn more about that process on National Grids -- Grid's website, which is greenpointenergycenter.com. One word, greenpointenergycenter.com.

Mr. Decicco mentioned this website and you can obtain documents and other information in that proceeding before D.E.C. So I want to discuss at this point, what the nature of this hearing is and what it isn't. It's not an evidentiary hearing. Witnesses are not cross-examined or evidence admitted.

And once the public comment port -- portion of the hearing begins, questions to me or others are no longer appropriate. Instead, this is your opportunity to provide input. And that's not only to the Commission, it's to the independent consultant. So your comments are critically important.

As you saw on the notice that the Secretary issued in August, all comments are submitted during the proceeding and are going to be a part of the record. And we are asking you to submit those comments by no later than November 14th, 2022. So you'll have an opportunity to review the independent consultant's report and submit comments thereafter.

As you know, a court reporter is taking down everything we all say. And that is why as we begin the public statement portion of the hearing, it's important for you to speak slowly. Do -- do not forget to identify yourself before proceeding. For those who are registered to speak via web -- WebEx, remember, I'm going to call your name, I'll let you know that your line is unmuted and you can proceed.

For those registered to speak by telephone, again, press star 3, so that we can recognize your line once I call your name and unmute it. If I don't hear you begin to speak or we can't find you, I'm going to have to move on to the next speaker, but I will circle back and re-call your name and attempt to capture the comments that we may have

missed.

Very important. Our objective is to provide an opportunity for every registered speaker to present a statement this evening. And unfortunately, we have a few registered speakers. So I'm asking everyone to please limit their comments to approximately 3 minutes as a courtesy to others.

If you're -- if you go much longer, I'm going to ask you to wrap up, so we can move on to the next speaker. But you, of course, can summarize lengthy comments in your oral presentation and submit it in full in writing to the Secretary. And you will see on the next slide before you, how you can do that. So there are a number of ways to comment.

So email and mail, there's the Secretary's email address and her snail mail address. You can also call on the telephone and provide a comment or upload an electronic version of your comments to the Commission's website. Again, make sure your comments have the case numbers that you see on the screen as well as some reference to National Grid and the Greenpoint Liquefied Natural Gas facility.

If we don't reach everyone tonight, of

course, we'll try to make accommodations to have your comments considered. And when I call you to speak, make sure that you have only 1 electronic device operational because we're going to have feedback problems potentially. And if you're having a technical problem, there is a phone number -- where is that? Yeah.

There's a phone number at the bottom of this slide 1-800-342-3330. Try to call that as soon as you can and we will attempt to assist you.

Okay. I am now going to proceed with the public statement portion of the hearing. And my first speaker, I have Sandra Renz, R-E-N-Z. Sandra Renz. I don't see her participating so I'm going to move on. Jean Sacchi(ph). No. Mary Finneran. Missy Walton. There's a lot of people who registered that did not show up, I guess.

Let me see if I can go down and find someone. Olivia Beals. Ms. Beals are you still on because you --.

MS. BEALS: Yeah.

A.L.J. LEARY: I'm going to unmute your line. Okay. You're unmuted. Please proceed.

MS. BEALS: Hi, so I'm asking that the

P.S.C. denies National Grid's rate hike for the gas vaporizers. I think that National Grid needs to retire the vaporizers rather than building more infrastructure. And I want P.S.C. to consider the health and safety of New Yorkers, especially considering that fracking contributes to climate change, which is going to affect all of us.

But especially the most disadvantaged community in New York City and we do have better options that we could -- could invest in in order to meet demand. So in conclusion, I think that the vaporizers are unnecessary and investing further in fracked gas furthers the climate crisis, which is counter to our stated goals.

A.L.J. LEARY: Thank you. Going down my list. I am not seeing any of the folks who have -- Barbara. Barbara Hertel. Let's see, where are you, Barbara? Okay. We're unmuting your line, Ms. Hertel and you can proceed. Make sure you state your name and spell your last name for the court reporter.

MS. HERTEL: Okay. My name is Barbara Hertel. My last name is spelled H-E-R-T-E-L. Okay. I do not support this project. I'm against all fossil fuel projects currently because they are

against the New York C.P.L.A.

And I would need to -- I just -- the vaporizers will just more -- add more pollution to Greenpoint which is already polluted enough. And the residents there have suffered enough. And also we don't need a rate increase.

People are just coming off of the COVID closure for the last 2 years. People are starting new jobs. People do not have the extra cash to pay for their vaporizers. We do not have the money for that. And I think it's just wrongheaded at this point to ask the ratepayers to pay for their folly.

And these are all projects that will be relegated to the fossil area -- the stranded assets in the next 10 years likely. So thank you. That's all I have to say. Please do not support this. Let this project go through, do not raise our rates. Thank you.

A.L.J. LEARY: Thank you. Let's see. Jennifer Harley. What is it? I'm sorry. I don't see Jennifer Harley. Ken Schles, I see you and we will unmute your line. And go ahead, you're unmuted.

MR. SCHLES: Hi, my name is Ken

Schles. The Public Service Commission must deny National Grid's rate application for additional L.N.G. vaporizers as Greenpoint facility, there are ample filings enough with the D.E.C. to reject this project.

The current system has adequate capacity and National Grid has yet to prove otherwise. A father of two, my family's made Brooklyn its home for over a century. My father labored in a shipyard on Newtown Creek in National Grid's proposed L.N.G. site.

Like many in frontline communities who suffer from environmental pollution, I suffered the burdens of fossil fuel consumption. As a child, I nearly died from asthma. In my mid 50s, I had a heart attack. Asthma prevented me from a full expression of my childhood and heart disease will shorten my life, depriving my family of a wage earner.

These additional vaporizers should not be built. National Grid's rationale is based on skewed demand data. They're simply unnecessary. And with New York City winter's increasingly warm, imp -- implementation of Local Law 97, the New York City gas

ban coming online any rationale for this project falls flatly on its face.

Our communities don't need a $65 million stranded asset. It's simply a speculative money grab by a monopoly utility. The P.S.C. has to stop rubber stamping rate increases for unnecessary make-work boondoggles, this project is not in compliance with the C.L.C.P.A. and hasn't been approved by the D.E.C.

The P.S.C. has to send National Grid a message that it will not rubber stamp rate increases for capital expenditures that aren't fully vetted and haven't been independently evaluated. National Grid are green washers that continue to promote fossil fuels for profit, despite what they claim, at great peril to environmental justice communities.

This spring they ran a disinformation campaign to scuttle a comprehensive New York State gas ban. Antonio Guterres said today at the U.N., we cannot go on like this. We have a duty to act and yet we are gridlocked in colossal global dysfunction. He says windfall profits of fossil fuel corporations must stop.

I say it is up to the P.S.C. to act

now to deny this rate hike. Fossil fuel pollution accounts for 20 percent of annual deaths. And the droughts, storms, and fires we increasingly must contend with, threaten the material wellbeing of us all, destroying homes, increasing water and food insecurity, adding to inflationary spirals that feed the city's affordability crisis.

The pollution National Grid profits from has cut life expectancy in the United States by 2 years. Locating these vaporizers on a flood plain and hurricane evacuation zone is criminal, an accident waiting to happen.

In 2019, New York City declared a climate emergency. Last week the New York City Council issued a resolution to stop construction of these vaporizers. National Grid must not add to our burdens. Do not make us pay for this. Yet they continue to disregard the law. National Grid is in the process of building an L.N.G. transport hub in this very location in open violation of New York City's ban on L.N.G. trucking; how dare they?

I already withhold 66 cents from my monthly National Grid bill for the P.S.C.'s illegitimate approval of the unapproved North

Brooklyn pipeline. I refuse to pay to be poisoned. Environmental pollution has diminished my life and the lives of too many that I love.

Give us a plan to retire the cancer in our midst, not threaten our communities with more of the same. The Public Service Commission must deny National Grid's rate application for additional L.N.G. vaporizers at its Greenpoint facility. Thank you.

A.L.J. LEARY: Thank you. Our next speaker is Shianna, I believe it's pronounced Mudie, M-U-D-I-E. We are unmuting your line and I'll let you know when that happens so you can proceed. Okay, you're unmuted, please proceed.

MS. MUDIE: Hello, my name is Shianna Mudie. I'm a member of Brownsville Green Justice. And I'm standing here with the Brownsville Community where I have friends and I have loved ones. The D.P.S. cannot continue to present the L.N.G. facility and the new pipeline and the M.R. pipeline as separate projects, s the L.N.G. facility needs M.R. pipeline to operate.

And the entire project needs to be reviewed as such. We cannot continue to build this

infrastructure that increases risk to negative health, public health impacts in a community that's disproportionately impacted without proper environmental review, which is exactly what happened with the false segmentation of this pipeline.

The environmental impact of phase 5 cannot adequately be addressed without the review of phases 1 through 4 that gives phase 5 life -- life. The rate hike decision was wrong as D.P.S. acknowledged that the C.L.C.P.A. applied but did not apply the C.L.C.P.A. to the black and brown communities that led through phases 1 through 4 on this pipeline.

Furthermore, the C.L.C.P.A. states goals were supposed to be 70 percent renewable by 2030, for energy infrastructure and that development for renewable infrastructure should be coming to black and brown communities.

This is not a number that's meant to address -- this is a number that's meant to address the urgency of the climate crisis. So I kind of find it interesting in our call today, that National Grid is ignoring this and building out new gas infrastructure. And by hiding behind energy

efficiency measures.

Number 1, energy efficiency measures alone do not fully address greenhouse gas emissions, which can only be addressed by electrification of energy infrastructure. And that means the electric grid. These energy measures like the demand response that you mentioned, do not change with the source of energy. You can still do demand response with an electric grid.

And these measures help reduce the load on the electric grid. That's why this reliability for the highest demand day should be coming from renewable infrastructure and leveraging what we're doing in the building energy industry. By making buildings more efficient and more energy conservative, by lowering their demand through a host of energy conservation measures, what software companies are doing to predict that load on the grid.

What New York State is doing to be able to push online sources of green energy like the Champlain Hudson Express to approach the climate crisis, to build out the electric grid, to meet the demand of being able to heat and cool our homes and have cooking and all these things that we use daily,

not to build an unneeded infrastructure in our communities that increases us at increased risk for asthma, and cancer, and other forms.

These are all things that the D.P.S. should have considered in review of this entire project. Outside of this, the original permit declaration by D.P.S. were failed, failed to review these as separate entities, which also violates SEQRA, which prohibits the segmentation of related actions into -- into discrete parts and requires the D.E.C. to consider the entire set of activities or steps, including the simultaneous or subsequent actions which are included in any long range plan, of which the action under this considered is applied for this this entire pipeline.

National Grid's have phases 4, 1 through 4 as well as 5 are not segmented, they are one. This entire project needs to be reviewed and have an environmental review. And they need to shut off the gas in phases 1 through 4 and hold phase 5. Thank you.

A.L.J. LEARY: Thank you. Our next speaker is Gigi Niel -- Nieson. Ms. Nieson, we're going to unmute your line. I'll let you know when

that happens. You are unmuted, please proceed, don't forget to spell your -- spell your name for the court reporter.

MS. NIESON: Yeah. Hi, my name is Gigi Nieson, so G-I-G-I, N-I-E-S-O-N. And I'm a resident of Bed-Stuy as someone who due to my location is forced to pay National Grid to keep my apartment. I urge the Public Service Commission deny National Grid's fracked gas vaporizers.

Me and my neighbors have been following these projects for years. Ever since we found out about M.R.I., the L.N.G. trucking, and about these vaporizers. We know that National Grid initially never wanted us to know about these projects.

But because of our collective organizing, we have a hearing such as this one. We know that the L.N.G., M.R.I., and L.N.G. trucking are connected. We are -- we are worried about the pollution that all of these projects would cause and are already causing in communities that already have high asthma rates and other life altering diseases.

And we know that we need to move off of fracked gas, not upgrade systems that will lock us

into fossil fuel dependency. We also don't have any confidence in National Grid's ability to ensure our safety, especially since we know that the Queens Gas Reliability Project had over 1,616 violations and was reviewed by the P.S.C. and the D.P.S.

So how could you ask us to pay for another project that harms our communities? The C.L.C.P.A. requires us to move off fossil fuels. The L.N.G. vaporizers should be decommissioned and renewable energy solutions that the community has a say in should replace them. Please deny the rate hike for National Grid's vaporizers.

A.L.J. LEARY: Thank you. Our next speaker is Maritza Henriquez. Ms. Henriquez, we are unmuting your line. You can proceed.

MS. HENRIQUEZ: Hi.

A.L.J. LEARY: And spell your name for the court reporter.

MS. HENRIQUEZ: Yes. Hi, good evening. My name is Maritza Henriquez. That's M-A-R-I-T-Z-A, H-E-N-R-I-Q-U-E-Z. I'm a parent within the New York City school system, a community organizer with FRACK OUTTA BROOKLYN and I lived directly on the pipeline in phase 4.

I first became aware of the pipeline not because of National Grid complied with its legal obligation to inform the public and acquire consent from the public, but because of the route that I was witnessing, being dug up in my community was also suspicious to not be a very intentional threat to my community.

Now, what is it that I mean when I say this? I live in Williamsburg an area widely recognized for its rent gentrification, Michelin-rated restaurants, bars, and nightlife. However, National Grid's construction route completely evaded any of these establishments, frequent -- frequented by the gentrifying class.

And said construction was apparent rather strategically through the following areas in phase 4, 18 public schools, the only 2 public playgrounds available to BIPOC residents. At least seven public housing complexes, 6 senior centers, the only public library in our community, a public farm needs to refresh produce from the community and many other important resources for those who have them.

In my time as parent-teacher association president of all North Brooklyn schools,

it was even more apparent that my neighbors were just as oblivious to what was happening. Those who were business owners and residents along phase 4 repeated to me the same thing, "National Grid claims to be renovating pre-existing pipes."

Why would National Grid lie about a project that allegedly poses no clear threat to our livelihoods. This project is a clear act of environmental racism and what National Grid's representatives grandstanding would want the public to believe is based on, "need." And let it be clear that no one in this community needs National Grid or fossil fuels.

But the National Grid's stockholders do need us, the community to be silent and complicit in our own destruction so that they can continue to exploit us and the earth. Corporations have no business talking down to us about our needs when they have gone above and beyond to skirt our need for corporate responsibility in a community still ameliorating the effects of one of the largest oil spills in North America.

What we do need is clean water and access to safe housing. The question of

environmental impacts on phase 5 cannot be answered without a full environmental review of phases 1 through 4. We are calling on the D.P.S. to stop these deliberate emissions of due process where black and brown lives are at stake.

The D.P.S. should not have approved any rate hikes. Once the C.L.C.P.A. was not applied to phases 1 through 4, where mostly low income black and brown families were affected. The D.P.S. failed to ensure that National Grid complied with SEQRA and that the pipeline met all regulatory requirements by ensuring that the D.E.C. reviewed the pipeline and the L.N.G. facility as one full action.

The project must be stopped. I call on those elected and appointed to uphold democracy. And I call on the people of Brooklyn to enforce it, should the government agencies choose to continue to be complicit in our rights being trampled on. Thank you.

A.L.J. LEARY: Thank you. Our next speaker is Laurel Leckert. Ms. Leckert we're going to unmute your line. And I'll let you know when that happens. Yes, you're unmuted, you can proceed.

MS. LECKERT: Hello, my name is

Laurel, I live in the evacuation zone of the North Brooklyn pipeline. And I'm here to demand that the P.S.C. deny National Grid's rate hike to cover their costs for building 2 new fracked gas vaporizers. I think it's crazy that we're even having this hearing today since both New York State and New York City climate laws require that we reduce the use of fracked gas in order to meet our goals of reducing greenhouse gas emissions.

It's crazy that we're even having this hearing today, since new L.N.G.'s storage is no longer legal in New York City due to the threat it poses to public safety. The government is supposed to advocate for the needs and safety of the public, not that of foreign corporations. The public has already submitted thousands of comments against these vaporizers and related infrastructure.

Community members including the Cooper Park Houses, a public housing complex located across the street from National Grid's L.N.G. facility, have sued New York State to stop the construction of the vaporizers.

How much louder can we be? We don't want the vaporizers. So start representing us by

denying the rate hike. We all know that fossil fuels are running out and that burning them contributes to higher rates of asthma, lung cancer, and other life-threatening health conditions.

National -- National Grid should be retiring its aging L.N.G. facility, not expanding it. They are poisoning us and they're trying to force us to pay them to do it, talk about insult to injury. And this comes in the wake of COVID when so many families are still struggling to keep up with their bills.

The public has spoken, we will not pay to be poisoned. And aside from the money this project is racist. The community is most directly affected, the ones who will and already do suffer these increased rates of major illness due to their proximity to the L.N.G. facility and the connected North Brooklyn pipeline are predominantly black and brown working class neighborhoods.

This project is classist, this project is racist, and above all, this project is shortsighted because in the face of climate chaos, we all lose. This is New York City; we are better than this. We need to be climate leaders, not suckers for

the profits of foreign corporations.

And I'm a New Yorker, which is why I'm here to demand that the P.S.C. denied National Grid's rate hike for 2 new fracked gas vaporizers. Thank you.

A.L.J. LEARY: Thank you. I believe that is all of the registered speakers on my list. But I see there are quite a few participants. I'd like to open up to the floor. Any additional person who is participating in the hearing, who would like to provide a public comment, please use the hand function on the WebEx platform or if you're calling in press star 3.

If you would like to provide a public comment. Now, Ms. Hertel -- Ms. Hunken, I see that you are -- you've raised a hand and I apologize. I thought you had already provided public comment. Your line is unmuted, so go ahead.

MS. HUNKEN: No, I haven't yet and I did register. So I hope that I can talk.

A.L.J. LEARY: I apologize. That's my fault. I put a checkmark next to your name maybe early and then missed you. Go ahead, please spell your name for the court reporter.

MS. HUNKEN: Thank you. My name is Monica Hunken, H-U-N-K-E-N. I live in Crown Heights, Brooklyn. I've lived here for 21 years and I'm part of the No North Brooklyn Pipeline coalition. I'm asking the Public Service Commission to deny all requests from National Grid including a rate hike to build 2 new L.N.G. vaporizers in Greenpoint.

As we speak today, people in Puerto Rico are in darkness and underwater, reeling from human fueled climate chaos, today marking 5 years since Hurricane Maria. And how can we be arrogant and foolish enough to believe that we are immune to the threat of climate change; we lived through Hurricane Sandy.

I biked up to the Rockaways every day with a team of volunteers to help muck through people's houses infested with deadly mold. We witnessed then how it was community and not government agencies that committed to the real work of recovery, just as we see now that the Public Service Commission failed to deliver a more thorough review of this entire project, failed to protect New Yorkers from this project years ago.

How can we continue to invest in

fracked gas as survivors of climate disasters ourselves while we are fully aware of these imminent dangers directly linked to fossil fuel infrastructure. We cannot allow the manufacturing of a myth of increased demand in order to stuff the wallets of corporations.

How could anyone possibly agree to $65 million for an L.N.G. build out in the neighborhood historically plagued by industrial pollution. The communities living along the pipeline and Newtown Creek did not consent to be a sacrifice zone, possibly waiting to consume more poison so National Grid can make a profit.

Perhaps National Grid believes that New York governing bodies will pay no mind and forget about BIPOC and working class neighborhoods, throw them under the bus, let them suffer, and call it another day of business as usual.

But they, we are fighting back even through debilitating cancers, and asthma, and other illnesses that creep in invisibly like Rachel Carson's Silent Spring. That is how I lost my father from exposure to a chemical used in fracking. That is why I'm here.

The people of Cooper Park Housing who lived directly across from National Grid's facility have been suffering from it are suing to stop construction of the vaporizers. Thousands of New Yorkers have attended rallies, protests, spoken at hearings and submitted comments, endless comments against this unnecessary and unjustified L.N.G. expansion.

It is tragic that everyday people who work full-time jobs, contribute to society, struggle to pay bills, to survive through pandemics and economic crises, must also take on the enormous task of fighting for our own health and safety, something that should be a basic given right.

Instead of pouring millions more dollars into the death machine of outdated fossil fuel economy that denies the authority of the C.L.C.P.A., make National Grid retire this L.N.G. facility, distribute these funds immediately to New York's future of -- of a livable, green, sustainable energy future.

Invest in our health and prosperity, systems are only held up by individuals. Each of you has the opportunity to show us your humanity, to step

into real power, and to stand in solidarity with us now. Thank you.

A.L.J. LEARY: Thank you. Ms. Kailas, we have a call-in user, we're going to your phone number begins 347-623 --

MS. RENZ: Hi.

A.L.J. LEARY: -- we're unmuting your line.

MS. RENZ: Can you hear me?

A.L.J. LEARY: Go ahead. I can hear you. But please --

MS. RENZ: Can you hear me?

A.L.J. LEARY: Yes, please state your name --

MS. RENZ: Okay.

A.L.J. LEARY: -- for the court reporter.

MS. RENZ: Okay. My name is Sandye Renz, S-A-N-D-Y-E, R-E-N-Z. And I live in Brooklyn. National Grid is a monopoly that has been the cause for much of this sorry state of our environment. They are very good at greenwashing their objective, when these objectives are continuing their destruction of our environment and con -- continuing

to make a lot of money while doing so.

National Grid should not be able to build more vaporizers. Our planet is in crisis and this action by National Grid will only add to its distress. Ratepayer dollars are not used for long-term climate solutions but to perpetuate our current -- current climate crisis.

National Grid is asking for ratepayers to be complicit in their global destruction. There is already too much environmental injustice and this proposal does nothing to adjust the racist legacy of fossil fuel pollution by National Grid and others.

The vaporizers are not needed and should not be billed and ratepayers should not be made to cover their costs. I'd also like to say that I wholeheartedly agree with this afternoon, the people who spoke this afternoon and this evening in opposition to this project. Their facts and reasoning is -- was completely right on; we can have a safer and better world. Thank you.

A.L.J. LEARY: Thank you. All right. This is the last call for any of our participants to provide a public comment. If you have not done so already, please use the raised hand function on your

computer or press star 3 if you are calling in on a telephone. Anyone else wish to provide a public statement?

Ms. Kailas, do you see any additional folks who may want to provide a comment? I'm not seeing any.

MS. KAILOS: No raised hand, Your Honor.

A.L.J. LEARY: I'm sorry?

MS. KAILOS: No additional raised hands, Your Honor.

A.L.J. LEARY: Thank you. Okay. So again, I want to remind everyone that there are other ways to comment on this proposal and they are listed on the secretary's notice. They're also provided on the screen before you on our PowerPoint.

Make sure your comments refer to the case number, which is there, 19-G-0309 or 19-G-0310. And you can provide written comments by email or mail, U.S. mail to the Secretary of the Commission. You can phone in or you can upload your comments to the Department's website. Again, www.dps.gov. I'm sorry -- .ny.gov.

In that case, I'm going to wrap things

up for this evening's public statement hearing. I would like to thank Chair Christian and Commissioner Maggiore. I'd also like to recognize the director of our Office of Consumer Services, who's also been participating, I believe, both in this afternoon's and this evening's hearing.

This is a very important contact for public outreach and, you know, providing consumer services. Richard Berkley, I'm not -- I'm not going to impose on him to say anything but thank you, Director Berkley for participating.

I'd also like to thank Judge Costello and Ms. Kailas of the Office of Consumer Services and Ms. Brown Anderson, and our court reporter, Mr. McClain. We are off the record and thank you all for participation. Have a wonderful evening.

THE REPORTER: Thank you.

MS. KAILAS: Thank you.

(The hearing concluded at 7:30 p.m.)

STATE OF NEW YORK

I, ANTHONY MCCLAIN, do hereby certify that the foregoing was reported by me, in the cause, at the time and place, as stated in the caption hereto, at Page 1 hereof; that the foregoing typewritten transcription consisting of pages 1 through 79, is a true record of all proceedings had at the hearing.

IN WITNESS WHEREOF, I have hereunto subscribed my name, this the 26th day of September, 2022.

ANTHONY MCCLAIN, Reporter